



For the Non-Recognition of the Conduct of the State of Israel

Legal, ethical and political grounds for a necessary rupture · 2026

This manifesto is written by one person alone.

I do not represent an organisation, a party, a movement. I am a European citizen who has travelled extensively for work and met people of every background — social, religious, political, geographical. I have Jewish friends, Muslim friends, Catholic friends, atheists. This diversity is not decorative backdrop to my life: it is how I learned to think.

On this conflict I have listened to everyone, starting with those closest to me. My Jewish friends put me to a hard test. I sought to understand their point of view, pursued it seriously, considered it. But in the end I found myself facing something I cannot call an argument: only justifications for acts that international law defines as unlawful. And I understood that continuing to stay silent — so as not to hurt a friendship, or not to appear what I am not — would have been dishonest. Towards them, before anyone else.

I believe in the norms of international law not as rhetorical convenience, but as the real foundation of civilised coexistence. I believe in Western morality in its oldest and most uncomfortable sense: the morality of people, not of politics and economics. On this issue, the moral bottom has been reached. The point at which silence ceases to be prudence and becomes complicity.

If you share this conviction, this manifesto is yours too.

To whom this manifesto is addressed

This manifesto is written for two categories of people whom dominant public discourse tends to artificially oppose, but who in fact share the same moral wager: that the law applies to everyone, without geopolitical exceptions.

It is addressed, first and foremost, to all those — of any nationality, culture or religious affiliation — who are not morally prepared to accept the abuses committed by the State of Israel against civilian populations in Gaza and Lebanon. To those who have seen images of white phosphorus falling on houses and have decided that silence is no longer a tenable position. To those who recognise that systematic and unanswered oppression generates violence — without this justifying it — and that attributing that violence exclusively to the oppressed, ignoring the structural conditions that produce it, is an act of moral blindness before it is a political one.

It is addressed, in equal measure and with equal force, to every Israeli citizen and every Jew of the diaspora who is today discriminated against, ostracised or blamed for the actions of a government they did not choose, contest, or have openly fought against. They are not responsible for the military and political choices of their State. Identifying them with those choices is an error this manifesto rejects with the same clarity with which it rejects the conduct of the Israeli State. Their dissenting voice is not a marginal exception: it is proof that there exists, within Israeli society, a critical conscience that deserves respect and solidarity, not stigma.

These two groups are not in contradiction. They are two faces of a single question: is it possible for international law to be respected, and for no human being to pay for the wrongs they have not committed? This manifesto's answer is yes — and the condition for making it true is calling things by their name.

I. PREAMBLE

This manifesto arises from an act of rational conscience, not from emotional impulse. Those who sign this document have observed, with growing intellectual dismay, the evolution of a pattern of State conduct that can no longer be explained within the ordinary categories of the use of force in armed conflict. The point of no return was the systematic and documented use of white phosphorus over densely populated civilian areas — a weapon whose indiscriminate and incendiary nature is unequivocally prohibited under customary and conventional international humanitarian law.

The chronological starting point must be stated just as clearly. On 7 October 2023, Hamas-led armed groups attacked Israel: according to Israeli authorities, some 1,200 people were killed and around 250 were taken to Gaza as hostages. The killing of civilians, hostage-taking, sexual violence: these are crimes that international law condemns without mitigation. For these acts the International Criminal Court issued an arrest warrant against Hamas's military commander, Mohammed Deif. This manifesto does not

ignore them and does not justify them. It maintains something else: a crime suffered does not authorise the commission of others, and humanitarian law binds those who respond to an attack exactly as it binds those who launched it.

This declaration is not an act of antisemitism, nor a denial of the Jewish people's right to existence and security. It is an act of fidelity to international law — the same legal order the world built upon the ruins of the Second World War with the promise of "never again". A promise that signatory States have a legal and moral obligation to honour. Those who sign condemn these violations unambiguously and refuse to recognise them as lawful.

II. THE TRIGGERING EVENT: THE USE OF WHITE PHOSPHORUS

2.1 Nature of the weapon

White phosphorus (WP) is a chemical substance that ignites spontaneously on contact with oxygen, burning at temperatures above 800°C. Once ignited, it continues to burn until it exhausts available oxygen or is completely consumed. When it comes into contact with human tissue, it penetrates deeply and continues to burn internally, causing extremely serious injuries — often lethal, and in any case permanent.

2.2 Documentation of use

Human Rights Watch documented, with photographic evidence, videos and direct testimonies, the use of white phosphorus munitions by the Israel Defense Forces (IDF) in densely populated areas of the Gaza Strip and southern Lebanon from October 2023. In both contexts, its use occurred in civilian urban areas, in violation of the principle of distinction and the prohibition of weapons with indiscriminate effects.

"Israeli forces have used white phosphorus in military operations in Lebanon and Gaza, putting civilians at risk of serious and long-term injuries." — Human Rights Watch, 12 October 2023

Similar verifications were carried out by Amnesty International, which called for the 16 October 2023 attack on the Lebanese village of Dhayra to be investigated as a war crime, and by the investigative units of The New York Times and the BBC. The Israeli army denied using it in Gaza and, on other occasions, defended its lawfulness as a smoke munition: a position the signatories consider legally unfounded when the munition is used over inhabited areas.

2.3 Legal characterisation

The use of white phosphorus over populated urban areas violates customary international humanitarian law, which binds every State regardless of the treaties it has ratified: the principle of distinction, the duty to take every feasible precaution to spare ci-

vilians, the prohibition of indiscriminate weapons and attacks (ICRC Rules 1, 15 and 71).

The specific treaty on incendiary weapons, Protocol III to the Convention on Certain Conventional Weapons (Geneva, 1980), does not apply here, for two reasons that honesty requires us to state. Israel has not ratified it. And the Protocol excludes from its definition munitions not "primarily designed" to set fires, such as white phosphorus munitions used as smoke. Human Rights Watch has for years called for closing precisely these two gaps.

Deliberate use against civilians constitutes a war crime under Article 8 of the [Rome Statute](#).

III. INTERNATIONAL NORMATIVE FRAMEWORK VIOLATED

3.1 Customary International Humanitarian Law

Customary international humanitarian law, codified in the work of the International Committee of the Red Cross (ICRC), establishes binding principles erga omnes regardless of the ratification of specific conventions. Among them:

- Principle of distinction (ICRC Rule 1): parties to a conflict must at all times distinguish between civilians and combatants, and between civilian objects and military objectives.
- Principle of proportionality (ICRC Rule 14): it is prohibited to launch an attack which may be expected to cause incidental civilian losses excessive in relation to the concrete and direct military advantage anticipated.
- Principle of precaution (ICRC Rule 15): all feasible precautions must be taken to avoid or minimise civilian casualties.
- Prohibition of indiscriminate weapons (ICRC Rule 71): weapons that by nature are incapable of distinguishing between civilians and combatants are prohibited.

The body of documentation produced by international organisations, independent observers and UN bodies attests to the structural and systematic violation of each of these principles in the context of Israeli military operations in Gaza and Lebanon.

3.2 Genocide Convention (1948)

The Republic of South Africa filed, on 29 December 2023, an application against the State of Israel before the International Court of Justice (ICJ) under the 1948 Genocide Convention. By its Order of 26 January 2024, the ICJ found plausible the rights of Palestinians in Gaza to be protected from acts of genocide, recognised a real and imminent risk of irreparable harm to those rights (§ 74), and ordered Israel to take all measures within its power to prevent acts falling within the scope of the Convention.

"The Court considers that at least some of the rights claimed by South Africa and for which it is seeking protection are plausible." — ICJ, Order of 26 January 2024, § 54

The Court did not find that genocide is plausible, nor that it has occurred: its President at the time, Joan Donoghue, made this clear in April 2024. The judgment on the merits is still pending: Israel filed its written defence on 12 March 2026. But a Court that recognises a real and imminent risk of irreparable harm has created a duty of prevention that binds every State party to the Convention, not Israel alone.

3.3 Rome Statute and International Criminal Court

The ICC Prosecutor, Karim Khan, requested on 21 May 2024 the issuance of arrest warrants against Prime Minister Benjamin Netanyahu and Defence Minister Yoav Gallant for war crimes and crimes against humanity. Pre-Trial Chamber I of the ICC issued those warrants on 21 November 2024. This is the first case in the Court's history in which arrest warrants have been issued against the leadership of a Western government or its strategic ally.

On the same day, the same Chamber issued an arrest warrant against Mohammed Deif, military commander of Hamas, for the crimes of 7 October. The proceedings were closed in February 2025, once his death had been established.

3.4 UN Resolutions

The United Nations General Assembly adopted, on 27 October 2023, Resolution ES-10/21 with 120 votes in favour, calling for an immediate humanitarian truce and respect for international law. The Security Council was repeatedly blocked by the United States' veto on ceasefire drafts. Resolution 2728 of March 2024, which demanded an immediate ceasefire, passed only thanks to the American abstention and remained unimplemented.

This structural paralysis of the Security Council does not exempt Member States from their obligations under the **UN Charter** and customary international law. On the contrary, it requires States committed to upholding the international order to act through the legal instruments at their disposal — including sanctions, arms embargoes, suspensions from international bodies, and the refusal to recognise the violating conduct as lawful.

IV. LEGAL BASIS: CLARITY ON CATEGORIES

4.1 What "non-recognition" means in this manifesto

Precision is required, because precision is the condition of credibility. Positive international law draws a sharp distinction between two categories that public discourse tends to conflate: the existence of a State as a legal entity and the legitimacy of its conduct.

Israel has existed as a State since 1948 and has been a member of the United Nations since 1949. No rule of current international law provides for the cancellation of a UN member State on account of violations committed by its organs. Those who sign this manifesto are aware of this, and do not intend to argue otherwise.

The "non-recognition" invoked in this document has a precise and legally grounded object: the refusal to recognise as lawful, as conforming to international law, the conduct of the State of Israel in its military operations in Gaza and Lebanon. This is precisely what the Articles on State Responsibility for Internationally Wrongful Acts (ARSIWA, ILC/UN 2001) require of other States in the face of serious violations of peremptory norms:

- Article 40: serious breaches of obligations arising under peremptory norms of general international law (*jus cogens*) — including the prohibition of genocide, international humanitarian law, and the prohibition of crimes against humanity.
- Article 41: obligation of other States not to recognise as lawful the situation created by the serious breach, and not to render aid or assistance in maintaining it.

The title of this manifesto — "non-recognition of the conduct of the State of Israel" — is to be read in this light: not as an ontological denial of statehood, but as a political and moral refusal to confer legitimacy on conduct that systematically violates peremptory law. The concrete legal content is that described in Section V.

4.2 The South Africa precedent: what holds and what does not

The South African precedent is often cited imprecisely. It must be clarified: the international community never "did not recognise" the State of South Africa as a legal entity. South Africa remained a UN member even during apartheid. What the international community did — and this is the relevant precedent — was to declare the regime's conduct illegitimate, suspend South Africa from specialised agencies, impose a mandatory arms embargo (Resolution 418, 1977) and progressively isolate the government until the apartheid system collapsed in 1990. This is precisely the model this manifesto proposes to apply.

4.3 The question of selectivity

A legitimate criticism the signatories do not intend to evade: if the criterion were the use of incendiary weapons in urban areas or violations of international humanitarian law, the catalogue of States to which analogous measures should apply would be long — the United States in Vietnam, Iraq and Yemen; Russia in Chechnya, Syria and Ukraine; France in Algeria; Turkey against the Kurdish population. The signatories acknowledge this asymmetry and declare it explicitly: it is not proof of antisemitism, but it is certainly proof of the selectivity with which international law is applied. The correct response to this asymmetry is not paralysis or silence: it is the affirmation that the same standard must apply to all, and that beginning to apply it — even in one case — is more honest than never applying it at all.

V. CONCRETE MEASURES

If the "non-recognition of conduct" is the moral and political framework of this manifesto, the measures listed here are its concrete legal content. They are not symbolic proposals: they are instruments already provided for in international law, already applied in historical precedents, and already called for by UN experts, special rapporteurs and human rights organisations.

5.1 United Nations

The **UN Charter** provides for the suspension (Art. 5) and the expulsion (Art. 6) of a Member State, but both require a recommendation of the Security Council, where a veto can block them. There is, however, a precedent the veto did not stop. In 1974, after the United States, the United Kingdom and France vetoed South Africa's expulsion, the General Assembly rejected the credentials of the South African delegation and excluded it from its work, until 1994. The General Assembly is called upon to consider the same path, and to use the "Uniting for Peace" procedure (Resolution 377, 1950) to recommend to States the measures the Council fails to adopt.

5.2 Specialised agencies and international bodies

Suspension of Israel's participation in the UN specialised agencies of which it is a member, such as the WHO and the FAO, and in bodies such as the OECD, is demanded, until the cessation of operations in violation of international humanitarian law and full co-operation with the ICC.

5.3 Economic sanctions and arms embargo

A mandatory embargo on arms supplies, ammunition and dual-use military technologies to the State of Israel is demanded, analogous to that adopted against South Africa in 1977. Targeted economic sanctions are also demanded, with international verification mechanisms for their effective implementation.

VI. A NECESSARY DISTINCTION: STATE, GOVERNMENT, PEOPLE

The signatories wish to reaffirm forcefully a distinction they consider essential both legally and morally: this manifesto is not directed against the Israeli people, against Jewish citizens of Israel or the diaspora, nor against Jewish culture, history or tradition.

It is directed against the governmental choices and military conduct of a State that, through its organs, has repeatedly violated international law. The distinction between State and people is not a rhetorical nicety: it is a fundamental category of international law, enshrined in State responsibility as an entity distinct from the individual criminal responsibility of its rulers.

We recognise and support the voices of those Israeli citizens — that dissenting minority — who take to the streets, document and denounce their government's violations. Non-recognition of the State is not their silencing: it is, paradoxically, one of the strongest acts of support for their cause.

VII. FINAL DECLARATION

We, the undersigned, by virtue of our commitment to the principles of international law, the UN Charter, the 1948 Genocide Convention and the Rome Statute, declare:

1. We do not recognise the legitimacy of the current conduct of the State of Israel as conforming to the rules of international humanitarian law and the fundamental principles of the international order.
2. We demand the immediate suspension of military operations in violation of international law, full cooperation with the International Criminal Court, and full implementation of the provisional measures ordered by the International Court of Justice.
3. We call upon States and international organisations to adopt the measures of suspension, exclusion and sanction described in this manifesto, until the restoration of State conduct in conformity with international law.
4. We affirm that respect for international law is non-negotiable, admits no geopolitical exceptions, and that any distinction between States that violate it based on their strategic positioning itself constitutes a violation of the principle of sovereign equality of States.

The white phosphorus burning over Gaza and Lebanon also burns the legitimacy of an international system that looks away. We do not look away.

LEGAL REFERENCES

- Protocol III CCW — Geneva 1980 | Genocide Convention — 1948
- Rome Statute Art. 8 — 1998 | ARSIWA Arts. 40-41 — ILC/UN 2001
- ICJ — South Africa v. Israel — 26 January 2024 | ICC — Netanyahu & Gallant — 21 November 2024
- HRW — White Phosphorus — 12 October 2023 | UNGA ES-10/21 — 27 October 2023
- ICRC — Customary IHL Study (Henckaerts & Doswald-Beck, 2005)
- UNSC Resolution 418 (1977) — South Africa Arms Embargo | UNGA 377(V) — Uniting for Peace — 1950
- Amnesty International — Dhayra (Lebanon) — 31 October 2023 | HRW — Protocol III and white phosphorus — 2024
- ICC — Deif warrant — 21 November 2024 | UNSC Resolution 2728 — 25 March 2024
- UNGA — exclusion of South Africa from its work — 12 November 1974

More sources: أخبار الأمم المتحدة · Haaretz · Amnesty International · Human Rights Watch · ICC — Deif · EJIL:Talk · UN — 1974